

rate of \$300.00 as well as the \$60.00 in costs for filing fees. Thus, the sanctions is awarded in the total amount of \$1,560.00.

V. CONCLUSION

Based on the foregoing, the Court GRANTS the motion to compel verified responses to FROGS, SPROGs, RFPD, set one. Plaintiffs is ORDERED to provided verifications to the response to FROGS, SPROGs, RFPD, set one within thirty (30) days from this hearing. The Court GRANTS sanctions against Plaintiffs in the amount of \$1,560.00. Defendant is to pay the sanctions amount within thirty (30) days from this hearing.

The Court will prepare the formal Order.

Calendar Line # 5

Case Name Kourosh Zahedi et al vs Volkswagen Group of America, Inc.

Case No. 25CV462288

Motion Judgment on the Pleadings

Before the court is defendants Volkswagen Group of America, Inc. and Stevens Creek Audi's motion for judgment on the pleadings. Pursuant to California Rule of Court 3.1308, the court issues its tentative ruling as follows.

I. BACKGROUND

On March 27, 2025, Plaintiffs Kourosh Zahedi and La Patisserie Bakery (collectively, "Plaintiffs") filed this case that arises from the Song-Beverly Consumer Warranty Act (Civ. Code, § 1790, et seq; the "Act" or "Song-Beverly") against defendants Volkswagen Group of America, Inc. ("Volkswagen") and Stevens Creek Audi ("Stevens Creek"; collectively, "Defendants").

Plaintiffs allege to have purchased a 2023 Audi E-tron under warranty on March 31, 2023 (the "Subject Vehicle"). (Complaint, ¶¶ 8, 10). Before Plaintiffs purchased the Subject Vehicle, Volkswagen knew that vehicles equipped with the same battery system as the Subject Vehicle suffered from defects that included, inter alia, loss of propulsion power while driving, sudden and premature battery failure, failure to start, and reduced range (the "Battery Defect"). (*Id.* at ¶ 56). Plaintiffs delivered the Subject Vehicle to Stevens Creek for substantial repair on at least one occasion, but Stevens Creek failed to properly store, prepare, and repair the Subject Vehicle in accordance with industry standards. (*Id.* at ¶¶ 48, 50).

Plaintiffs allege the following causes of action: (1) violation of Civil Code section 1793.2, subdivision (d) (against Volkswagen); (2) violation of Civil Code section 1793.2, subdivision (b) (against Volkswagen); (3) violation of Civil Code section 1793.2, subdivision (a)(3) (against Volkswagen); (4) breach of the implied warranty of merchantability (against Volkswagen); (5) negligent repair (against Stevens Creek); and (6) fraudulent inducement – concealment (against Volkswagen).

Defendants filed the instant motion for judgment on the pleadings on March 11, 2026.

II. LEGAL STANDARD

Pursuant to Code of Civil Procedure section 438(f), a defendant's motion for judgment on the pleadings may be made after the time to demur has expired and an answer has been filed. Under a Code of Civil Procedure section 438(c), a motion by a defendant may be made on the grounds that (1) the court "lacks jurisdiction of the subject of one or more of the causes of action alleged" or (2) the complaint or cross-complaint "does not state facts sufficient to constitute a cause of action against that defendant." A motion for judgment on the pleadings has the same function as a general demurrer but is made after the time for demurrer has expired. Except as provided by statute, the rules governing demurrers apply. (*Cloud v. Northrop Grumman Corp.* (1998) 67 Cal.App.4th 995, 999). "A

motion for judgment on the pleadings is akin to a general demurrer; it tests the sufficiency of the complaint to state a cause of action. The court must assume the truth of all factual allegations in the complaint, along with matters subject to judicial notice.” (*Wise v. Pacific Gas and Elec. Co.* (2005) 132 Cal.App.4th 725, 738, citations omitted). A motion for judgment on the pleadings “does not lie as to a portion of a cause of action, and if any part of a cause of action is properly pleaded, the [motion] will be overruled.” (*Fire Ins. Exchange v. Superior Court* (2004) 116 Cal.App.4th 446, 452).

Code of Civil Procedure section 438(e) sets forth a timeline for statutory motion for judgment on the pleadings, which must be made within 30 days of the date the action was initially set for trial, unless otherwise provided by the Court. However, this only applies to the statutory basis for the motion. (Code Civ. Proc., § 438). Caselaw after the creation of that statute still recognizes grounds for a common law motion for judgment on the pleadings. (*Stoops v. Abbassi* (2002) 100 Cal.App.4th 644, 650 [recognizing that the motion may be made “at any time either prior to the trial or at the trial itself”]; *see also, Smiley v. Citibank (South Dakota) N.A.* (1995) 11 Cal.4th 138, 145, fn. 2 [non-statutory MJOP upheld despite fact section 438 enacted during course of proceedings]; *Cordova v. 21st Century Ins. Co.* (2005) 129 Cal.App.4th 89, 109 [MSJ treated as a common law motion for judgment on the pleadings]; *Tarin v. Lind* (2020) 47 Cal.App.5th 395 [addressing merits of non-statutory motion]).

III. PROCEDURAL ISSUES

Defendants improperly move for judgment on the pleadings as to Plaintiffs’ request for punitive damages. A motion for judgment on the pleadings is not the proper procedural vehicle for disposing of an improper remedy. (Code Civ. Proc., § 438, subd. (c)(1)(B); *Caliber Bodyworks, Inc. v. Super. Ct.* (2005) 134 Cal.App.4th 365, 385). The court will not address Defendants’ arguments regarding Plaintiffs’ request for punitive damages.

Plaintiffs filed their opposition two days late in violation of Code of Civil Procedure section 1005, subdivision (b). Because the court has discretion to consider a late-filed paper and Defendants have not demonstrated any real prejudice from the late filing, the court will look past this procedural violation and consider the opposition on its merits. (*Bozzi v. Nordstrom, Inc.* (2010) 186 Cal.App.4th 755, 765). Plaintiffs and their counsel are admonished for the procedural violation. Any future violation may result in the court’s refusal to consider untimely papers.

III. ANALYSIS

A. SONG-BEVERLY CAUSES OF ACTION

Volkswagen moves for judgment on the pleadings of the Song-Beverly causes of action (first through fourth) on the ground that each fails to allege sufficient facts.

Statutory causes of action must be pleaded with particularity. (*Covenant Care, Inc. v. Superior Court (Inclan)* (2004) 32 Cal.4th 771, 790 (*Covenant Care*)). Simply parroting statutory language is insufficient to state a cause of action in the absence of supporting facts. (*Hawkins v. TACA Internat. Airlines, S.A.* (2014) 223 Cal.App.4th 466, 478 (*Hawkins*)).

1. Pleading the Retail Sale or Lease

Contrary to Volkswagen’s assertion, the complaint adequately alleges a retail sale. The complaint alleges that Volkswagen is in the business of marketing, distributing, and selling automobiles. (Complaint, ¶ 5). The complaint also alleges that Plaintiffs and Volkswagen entered into a warranty contract for the Subject Vehicle. (*Id.* at ¶ 8). The complaint further alleges that the Subject Vehicle is a “consumer good”, Plaintiffs are the “buyers” of said good, and Volkswagen is a “manufacturer” or “distributor” under the Act. (*Id.* at ¶ 10). Taken together and construed liberally, these allegations are sufficient. (See *Lance Camper Manufacturing Corp. v. Republic Indemnity Co.* (1996) 44 Cal.App.4th 194, 198 [liberally construing the allegations of the complaint on a motion for judgment on the pleadings]).

2. *Civil Code section 1793.2, subdivision (d)*

Volkswagen contends that the first cause of action for violation of Civil Code section 1793.2, subdivision (d) fails to allege specific repair orders or nonconformities.

Civil Code section 1793.2, subdivision (d) requires a manufacturer to promptly replace the vehicle or make restitution to the buyer when the manufacturer is unable to service or repair the vehicle in conformity with the applicable express warranty after a reasonable number of repair attempts.

Here, the complaint alleges that Volkswagen (1) was unable to repair the vehicle to conform to the applicable express warranties after a reasonable number of opportunities; and (2) failed to promptly replace the vehicle or make restitution as required by the Act. (Complaint, ¶ 29). These alleged defects and nonconformities to warranty manifested during the express warranty period and include electric battery defects and electrical defects. (*Id.* at ¶ 13). These allegations are sufficient to withstanding a motion for judgment on the pleadings. Volkswagen offers no authority to support the proposition that Plaintiffs must plead the specific repair orders or the specific nonconformities affecting the Subject Vehicle for each repair visit. (*United Grand Corp. v. Malibu Hillbillies, LLC* (2019) 36 Cal.App.5th 142, 153 [court may disregard conclusory arguments that are not supported by pertinent legal authority or fail to disclose the reasoning by which the appellant reached the conclusions he or she wants us to adopt]; see *Gutierrez v. Carmax Auto Superstores California* (2018) 19 Cal.App.5th 1234, 1261 [pleading with particularity is more lenient than the pleading with specificity standard for fraud claims]).

The motion for judgment on the pleadings as to the first cause of action is DENIED.

3. *Civil Code section 1793.2, subdivision (b)*

Volkswagen argues that the second cause of action for violation of Civil Code section 1793.2, subdivision (b) fails to allege any specific 30-day repair violation.

Civil Code section 1793.2, subdivision (b) requires a manufacturer to begin service or repair on goods that do not conform with the applicable express warranty in reasonable time. Unless the buyer agrees otherwise, reasonable time means within 30 days. (Civ. Code, § 1793.2, subd. (b)).

The second cause of action for violation of Civil Code section 1793.2, subdivision (b) is insufficiently pleaded because it simply parrots the statute. (Complaint, ¶ 35). The complaint pleads no facts specific to Plaintiffs' case. The cause of action is not pleaded with the particularity required of statutory causes of action. (*Hawkins, supra*, 223 Cal.App.4th at p. 478).

Plaintiffs fail to meet their burden of proving an amendment would cure any defect. Nevertheless, because this is the first pleading challenge, the court will grant leave to amend. (*City of Stockton v. Super. Ct.* (2007) 42 Cal.4th 730, 747 [leave to amend is liberally allowed as a matter of fairness, unless the pleading shows on its face that it is incapable of amendment]).

The motion for judgment on the pleadings as to the second cause of action is GRANTED with 10 days' leave to amend.

4. *Civil Code, section 1793.2, subdivision (a)(3)*

Volkswagen asserts that the third cause of action for violation of Civil Code section 1793.2, subdivision (a)(3) is conclusory and inadequately pleaded.

Civil Code section 1793.2, subdivision (a)(3) requires a manufacturer to make available sufficient literature and replacement parts to authorized repair facilities to effect repairs during the express warranty period.

The third cause of action is insufficiently pleaded because it also simply parrots the statute. (Complaint, ¶ 40).

The third cause of action is devoid of any supporting allegations specific to Plaintiffs' case. It is not pleaded with the particularity required of statutory causes of action. (*Hawkins, supra*, 223 Cal.App.4th at p. 478).

The motion for judgment on the pleadings as to the third cause of action is GRANTED with 10 days' leave to amend.

5. *Breach of the Implied Warranty of Merchantability*

Volkswagen contends that the fourth cause of action for breach of the implied warranty of merchantability under the Act is deficient because it fails to allege: (1) a qualifying sale to a retail buyer; (2) the battery defect existed at the time of purchase or within a year thereafter; (3) the defect rendered the vehicle unfit for ordinary use during that period; or (4) the Subject Vehicle was presented within the implied-warranty period. Notably, Plaintiffs do not address this argument in their opposition.

To properly assert a breach of implied warranty claim, a plaintiff must allege a breach of warranty, occurring while the warranty is valid, and bring suit within the limitations period. (*Mexia v. Rinker Boat Co., Inc.* (2009) 174 Cal.App.4th 1297, 1306 (*Mexia*)). The "implied warranty of merchantability may be breached by a latent defect undiscoverable at the time of sale." (*Id.* at p. 1304). Thus, if a product is sold with a latent defect, the implied warranty is breached "by the existence of the unseen defect, not by its subsequent discovery." (*Id.* at p. 1305). As discussed above, the complaint adequately alleges a qualifying sale to a retail buyer. (Complaint, ¶¶ 8, 10). The complaint also alleges that the Subject Vehicle had a latent defect at the time of purchase. (*Id.* at ¶ 45). Thus, Plaintiffs' failure to allege that the Subject Vehicle was presented within the implied-warranty period is not fatal. (See *Mexia, supra*, 174 Cal.App.4th at p. 1304).

The complaint, however, does not plead any facts supporting the allegation that the Subject Vehicle was unfit for ordinary use. The fourth cause of action is not pleaded with the requisite particularity. (*Covenant Care, supra*, 32 Cal.4th at p. 790).

The motion for judgment on the pleadings as to the fourth cause of action is GRANTED with 10 days' leave to amend.

B. NEGLIGENCE REPAIR

Stevens Creek moves for judgment on the pleadings of the negligent repair cause of action on the ground that (1) the Complaint fails to allege sufficient facts; and (2) is barred by the economic loss rule.

The elements of a negligence cause of action are duty, breach, causation and damages." (*County of Santa Clara v. Atlantic Richfield Co.* (2006) 137 Cal.App.4th 292, 318).

The complaint alleges that (1) Plaintiffs delivered the Subject Vehicle to Stevens Creek for substantial repair at least once; (2) Stevens Creek owed a duty to Plaintiffs to use ordinary care and skill in storing, preparing, and repairing the Subject Vehicle in accordance with industry standards; (3) Stevens Creek breached that duty; and (4) Stevens Creek's negligent breach was a proximate cause of Plaintiffs' damages. (Complaint, ¶¶ 48-51). These allegations are sufficient to survive a motion for judgment on the pleadings. (*Hahn v. Mirda* (2007) 147 Cal.App.4th 740, 747 ["Negligence may be alleged in general terms; that is, it is sufficient to allege an act was negligently done without stating the particular omission which rendered it negligent."]). Stevens Creek provides no authority to support their assertion that the cause of action must be pleaded with specificity. Stevens Creek can determine the specific repairs through discovery.

Stevens Creek also argues that the negligent repair cause of action is barred by the economic loss rule.

The economic loss rule requires a purchaser to recover solely in contract for purely economic loss due to disappointed expectations, unless the purchaser can demonstrate harm above and beyond a contractual promise. (*Robinson Helicopter Company v. Dana Corporation* (2004) 34 Cal.4th 979, 988). The economic loss rule, however, does not necessarily bar recovery in tort for damage that a defective product causes to other portions of a larger product, into which the former has been incorporated. (*Jimenez v. Super. Ct.* (2002) 29 Cal.4th 473, 483). But the complaint does not allege damage to other portions of the Subject Vehicle caused by any allegedly negligent repair. The complaint only alleges that the Subject Vehicle was sold with a battery defect that Stevens Creek did not cause but could not fix. The economic loss rule therefore bars Plaintiffs' fifth cause of action for negligent repair.

The motion for judgment on the pleadings as to the fifth cause of action is GRANTED with 10 days' leave to amend.

C. FRAUDULENT INDUCEMENT – CONCEALMENT

Volkswagen moves for judgment on the pleadings as to the sixth cause of action on the grounds that the complaint fails to allege: (1) the claim with the requisite specificity; (2) a duty to disclose; and (3) reliance.

The required elements for fraudulent concealment are (1) concealment or suppression of a material fact; (2) by a defendant with a duty to disclose the fact; (3) the defendant intended to defraud the plaintiff by intentionally concealing or suppressing the fact; (4) the plaintiff was unaware of the fact and would have acted differently if the concealed or suppressed fact was known; and (5) the plaintiff sustained damage as a result of the concealment or suppression of the material fact.

(*Rattagan v. Uber Technologies, Inc.* (2024) 17 Cal.5th 1, 40 (*Rattagan*)).

1. Specificity

Although it is a general rule that each element in a fraud cause of action must be pleaded with specificity (*Lazar v. Super. Ct.* (1996) 12 Cal.4th 631, 645), this pleading requirement is relaxed in claims for concealment. (*See Alfaro v. Community Housing Imp. System & Planning Ass'n., Inc.* (2009) 171 Cal.App.4th 1356, 1384 (*Alfaro*) ["How does one show 'how' and 'by what means' something didn't happen, or 'when' it never happened, or 'where' it never happened?"]).

The complaint satisfies the pleading requirements for a fraud cause of action. It alleges that the Subject Vehicle exhibited symptoms of defects. (Complaint, ¶¶ 26, 56). Volkswagen allegedly knew that the vehicle had those defects but failed to disclose them at time of purchase. (*Id.* at ¶¶ 55, 59). And because Volkswagen had exclusive access to pre-production testing data, early consumer complaints, among other sources of information not available to Plaintiffs, Volkswagen was in a superior position to know of the defects. (*Id.* at ¶ 60(a)-(b)). Plaintiffs allege that Volkswagen intentionally concealed those defects. (*Id.* at ¶ 61). Plaintiffs further allege that had they known of those defects, they would not have purchased the Subject Vehicle. (*Id.* at ¶ 62). At least one appellate court has deemed similar allegations sufficient to support cause of action for fraudulent inducement by concealment. (*Dhital v. Nissan North America, Inc.* (2022) 84 Cal.App.5th 828, 843-844).²

Plaintiffs need not allege the "who", "how", "by what means", "when", and "where" of Volkswagen's alleged concealment because that information is squarely within Volkswagen's knowledge. (*Alfaro, supra*, 171 Cal.App.4th at p. 1384). And the allegation that Volkswagen "knowingly and intentionally concealed material facts" is sufficient for purposes of pleading intent. (*Beckwith v. Dahl* (2012) 205 Cal.App.4th 1039, 1060 [false promise sufficiently pled with a general allegation that the promise was made without an intent to perform]).

² Although the Supreme Court initially granted review in *Dhital*, it subsequently dismissed review, which means *Dhital* is precedential authority. (Cal Rules of Court, rule 8.1115(e)(2)).

2. *Duty to Disclose*

“To maintain a cause of action for fraud through nondisclosure or concealment of facts, there must be allegations demonstrating that the defendant was under a legal duty to disclose those facts.” (*Los Angeles Memorial Coliseum Commission, et al. v. Insomniac, Inc., et al.* (2015) 233 Cal.App.4th 803, 831). A duty to disclose may arise where the parties in a relationship that gives rise to the duty, such as a seller and buyer or parties entering into any kind of contractual arrangement. (*Rattagan, supra*, 1 Cal.5th at p. 40).

The complaint sufficiently alleges a relationship giving rise to a duty to disclose. Plaintiffs allege that they entered into a warranty contract with Volkswagen. (Complaint, ¶ 8).

3. *Reliance*

To plead reliance in an action for nondisclosure or concealment, a plaintiff must allege that “had the omitted information been disclosed, one would have been aware of it and behaved differently.” (*Mirkin v. Wasserman* (1993) 5 Cal.4th 1082, 1093). “Reliance exists when the misrepresentation or nondisclosure was an immediate cause of the plaintiff’s conduct which altered his or her legal relations, and when without such misrepresentation or nondisclosure he or she would not, in all reasonable probability, have entered into the contract or other transaction.” (*Alliance Mortgage Cp., v. Rothwell* (1995) 10 Cal.4th 1226, 1239 (*Alliance*)).

Plaintiffs have alleged that had they known of the defect, they would not have purchased the Subject Vehicle. (Complaint, ¶ 62). The reliance element is sufficiently pleaded. (See *Alliance, supra*, 10 Cal.4th at p. 1239 [“Except in the rare case where the undisputed facts leave no room for a reasonable difference of opinion, the question of whether a plaintiff’s reliance is reasonable is a question of fact.”]).

4. *New Arguments on Reply*

Defendants raise multiple new arguments on reply. Specifically, Defendant contends that the fraud cause of action: (1) fails to allege an agency relationship between Volkswagen and a dealership; (2) is barred by the economic loss rule under *Rattagan*; and (3) is actually an action for breach of contract.

The court rejects these arguments as they are improperly raised for the first time on reply. (*Browne v. County of Tehama* (2013) 213 Cal.App.4th 704, 720, fn. 10 [“Points raised for the first time in a reply brief will ordinarily not be considered, because such consideration would deprive the respondent of an opportunity to counter the argument.”]). The motion for judgment on the pleadings as to the sixth cause of action is DENIED.

V. CONCLUSION

Based on the foregoing, the Court GRANTS Defendants’ motion for judgment on the pleadings as to the second, third, fourth, and fifth causes of action with ten (10) days’ leave to amend. The Court DENIES Defendants’ motion for judgment on the pleadings as to the first and sixth causes of action.

The Court will prepare the formal order.

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Calendar Line # 6
Case Name Jane Doe 1 vs Rafael Ramirez et al
Case No. 25CV473786
Motion for Change of Venue <u>I. BACKGROUND</u> This case stems from allegations of sexual assault. Plaintiff Jane Doe filed a Complaint on August 27, 2025 against Defendants Pacific Collegiate School (“PCS”), Santa Cruz County Office of Education (“SCCOE”), Rafael Ramirez, Maria Reitano, Trung Lai, and DOES 1 through 10 (collectively “Defendants”). Plaintiff filed a First Amended Complaint on January 15, 2026 alleging five causes of actions, including: (1) sexual abuse of a minor; (2) negligence of SCCOE, PCS employee in hiring, supervision and/or retention of Defendant Lai under Government Code section 815.2; (3) negligence of SCCOE, PCS employee in, supervision of Jane Doe 1 under Government Code section 815.2; (4) negligence of SCCOE, PCS employee in hiring, supervision and/or retention of Defendant Lai; and (5) negligence of SCCOE, PCS employee in, supervision of Jane Doe 1. On March 24, 2026, the Court heard Defendant Lai’s motion to stay civil proceedings for a period of six months pending Defendant Lai’s criminal case in Santa Cruz County, docket 24CR02808. Before the Court, is Plaintiff’s motion to change venue. The motion is unopposed. Per Code of Civil Procedure section 1005(b) opposition papers were due on August 19, 2026. A failure to oppose a motion may be deemed a consent to the granting of the motion. (California Rule of Court Rule 8.54(c); <i>Sexton v. Superior Court</i> (1997) 58 Cal.App.4th 1403, 1410). Failure to oppose a motion leads to the presumption that the defendant has no meritorious arguments. (<i>Laguna Auto Body v. Farmers Ins. Exchange</i> (1991) 231 Cal.App.3d 481, 489). Defendants stipulate to Plaintiff’s motion to transfer venue to Santa Cruz County. <u>II. LEGAL STANDARD</u> Code of Civil Procedure section 395, subdivision (a) provides, in pertinent part: Except as otherwise provided by law and subject to the power of the court to transfer actions or proceedings as provided in this title, the superior court in the county where the defendants or some of them reside at the commencement of the action is the proper court for the trial of the action. If the action is for injury to person or personal property or for death from wrongful act or negligence, the superior court in either the county where the injury occurs or the injury causing death occurs or the county where the defendants, or some of them reside at the commencement of the action, is a proper court for the trial of the action. (Code of Civ. Proc., 395(a)). The burden is on the moving party to establish that the venue selected by Plaintiff is improper. And the moving party has the burden of “negating the propriety of venue as laid on all possible grounds.” (<i>Karson Industries, Inc. v. Superior Court</i> (1969) 273 Cal.App.2d 7, 8-9). <u>III. ANALYSIS</u> Here, the Plaintiff’s motion to change venue is unopposed and made pursuant to a stipulation by all parties. (Exhibit A, attached to Motion, p. 1). Plaintiff moves to transfer venue from Santa Clara County to Santa Cruz County. It is unopposed that parties reside or conduct business in Santa Cruz County. (Motion, p. 2). Plaintiff claims that the sexual assault occurred in Santa Cruz County. (<i>Id.</i>, at p. 3). The Court notes that parties represented that a criminal case was filed and pending in Santa Cruz County, docket number 24CR02808. It is undisputed that this civil case